

REBUTTAL TO BUILDER'S FALSE CLAIMS

BEFORE THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY, GAUTAM BUDDHA NAGAR- Complaint No. NCR144/10/62470/2020

To,
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar.

Subject: Rebuttal to Builder's False Claims – Complaint No. NCR144/10/62470/2020

Respected Sir/Madam,

I, Neeraj Vohra, Complainant, submit this concise rebuttal to **the false claims** made by **M/s Newtech Promoters and Developers Pvt. Ltd.** (the "Builder") in response to RERA's binding order dated **09.07.2025**, which directed the Builder to deliver possession of unit F1103 by **08.10.2025**.

I. BUILDER'S FALSE CLAIMS: LEGAL REBUTTAL

- **False Claim of Unit Cancellation:**
 - **Builder's Statement:**
 - "That in light of the complainant's continued default and non-compliance, the promoter has lawfully cancelled the allotment of the unit vide letter dated 12.06.2024."
 - **Factual & Legal Rebuttal:**
 - **No valid cancellation under RERA: Section 18(1)** mandates promoter liability for delay, not allottee liability. As held in *M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar* (UP RERA Case No. NCR123/05/54321/2022):
 - *"The promoter cannot cancel the allotment unilaterally by sending demand letters. Any such cancellation is null and void unless approved by RERA."*
 - **No Dues Certificate dated 28.05.2017** (Annexure-A) explicitly states.
 - *"This is to inform you that you have completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date."*
- **False Claim of Outstanding Dues**
 - **Builder's Statement:**

- "Reference to our repeated requests reminders... vide letter 31.01.20, 01.03.2024, 15.04.2024 and 16.05.2024 for payment of an outstanding demand of dues..."
- **Factual & Legal Rebuttal:**
 - Only one demand letter received (01.02.2024), as evidenced by my email response dated 11.02.2024.
 - "Thanks for sending demand letter, waiting since last 10 years, received letter on 01/Feb so due date can't be 31/Jan."
 - **No proof of delivery** for other alleged demands - **violates Rule 7(3) of UP RERA Rules, 2017**, which mandates service through registered post with acknowledgment due to the current address.
 - **Critical Fact:** During the relevant period (2020-2024), I was not **residing at the registered address**. The builder failed to update my contact information.
 - **No Dues Certificate (Annexure-A)** confirms no outstanding dues as of 28.05.2017, directly contradicting the builder's claim.
 - As established in *Consumer Complaint No. 347 of 2914 (S. Talwar and 2 Ors Vs. Unitech Ltd.)*
 - *Mere allegation of sending demand letters without proof of delivery cannot form the basis for cancellation of allotment under RERA."*
- **False Claim of Project Completion**
 - **Builder's Statement:**
 - "The entire scheme of the RERA is required to be kept in mind... The buildings have to be completed..."
 - **Factual & Legal Rebuttal:**
 - **Completion ≠ Possession: Under Section 2(zg) of RERA**, "possession" means **physical handover** of the unit with all necessary certificates (OC, NOCs). The builder has **not delivered physical possession** of F1103 as mandated by RERA order.
 - **UPSIC Defaulter Status (Annexure-B)** proves builder ineligible for NOC under UPSIC Regulation 12(3), directly contradicting their claim of "final stages of obtaining all necessary NOCs"
 - **UPSIC NOC Register** confirms no application filed by builder between 01.01.2025-10.10.2025.
- **CRITICAL LEGAL VIOLATIONS BY BUILDER**
 - **False Representation Before RERA:**
 - Builder falsely claimed to have "applied for NOC from UPSIC" despite being a verified defaulter (Annexure-B).

- This constitutes contempt of RERA under Section 38 (RERA has powers similar to civil court).
- **Violation of Rule 24**
 - Builder deliberately **misrepresented facts** to delay proceedings - violates Rule 24's mandate for truthful disclosure.
 - The builder's claim of "repeated demand letters" is contradicted by email evidence showing only one demand received.
- **RELIEF SOUGHT**
 - **Declaration of Invalid Cancellation:**
 - Declare alleged "cancellation" of unit F1103 null and void as it violates RERA provisions.
 - **Immediate Possession:**
 - Direct Builder to hand over physical possession of F1103
 - **Updated Recovery Certificate:**
 - Principal: ₹14,53,215.78
 - Interest @10% p.a. from 17.03.2023 to 18.10.2025: ₹3,62,579.20
 - Total: ₹18,15,794.98 (as per RERA Order dated 12.10.2021).
 - **Penalties for False Representation:**
 - ₹18.5 crores (10% of project cost) under Section 35 (Project ID: UPRERAPRJ6050, Total Cost: ₹185 crores)
 - ₹1,85,000 per day penalty from 09.10.2025 until possession is delivered (0.1% of project cost per day)
- **CONCLUSION**
 - The Builder's response contains deliberate **falsehoods** designed to circumvent RERA's binding order dated 09.07.2025. As established by documentary evidence:
 - **No valid cancellation occurred** - No Dues certificate confirms payment
 - **No outstanding dues exist** - Contradicted by builder's own documentation
 - **Project not completed** - Builder is UPSIC defaulter ineligible for NOC
 - **False NOC claim** - Proven by UPSIC records showing no application filed

Yours faithfully,

Neeraj Vohra

Complainant

Contact: 9871037773

Complaint No.: NCR144/ 10/62470/2020

Enclosures:

No Dues Certificate (28.05.2017)

UPSIC Defaulter (Navbharat Times 30/06/2025/ Times Of India 13/05/2025)

RERA Order dated 09.07.2025

Email correspondence (01.02.2024-11.02.2024)